Automated License Plate Readers (ALPRs)

463.1 PURPOSE AND SCOPE

Best Practice

The purpose of this policy is to provide guidance for the capture, storage and use of digital data obtained through the use of Automated License Plate Reader (ALPR) technology.

463.2 ADMINISTRATION

Best Practice MODIFIED

The ALPR technology, also known as License Plate Recognition (LPR), allows for the automated detection of license plates. It is used by the San Mateo Police Department to convert data associated with vehicle license plates for official law enforcement purposes, including identifying stolen or wanted vehicles, stolen license plates and missing persons. It may also be used to gather information related to active warrants, homeland security, electronic surveillance, suspect interdiction and stolen property recovery.

All installation and maintenance of ALPR equipment, as well as ALPR data retention and access, shall be managed by the Support Services Captain or their designee. The Support Services Captain or their designee will assign members under his/her command to administer the day-to-day operation of the ALPR equipment and data.

463.2.1 ALPR ADMINISTRATOR

State MODIFIED

The Support Services Captain, as the ALPR Administrator, or their designee, shall be responsible for developing guidelines and procedures to comply with the requirements of Civil Code § 1798.90.5 et seq. These guidelines and procedures are delineated in this policy and/or in our Department's Standard Operating Procedure (SOP) 205, "Automated License Plate Readers Operating Procedure."

463.3 DEFINITIONS

Agency Content

"**Automated license plate recognition operator**" or "**ALPR operator**," means a person that operates an ALPR system. For our Department purposes, this will usually refer to our personnel or authorized designee operating a vehicle or other item of equipment with ALPR cameras collecting license plate data.

"**Automated license plate recognition end-user**" or "**ALPR end-user**" means a person that accesses or uses an ALPR system. For our Department purposes, this will usually refer to our personnel or authorized designee accessing data on a retroactive basis that is collected and stored in a centralized database(s).

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463.4 OPERATIONS

State MODIFIED

Use of an ALPR is restricted to the purposes outlined below. Department members shall not use, or allow others to use the equipment or database records for any unauthorized purpose (Civil Code § 1798.90.51; Civil Code § 1798.90.53).

(a) An ALPR shall only be used for official law enforcement business by any Department member(s) or authorized designee whose job duties necessitate the use of ALPR and that have completed Department approved training.

(b) An ALPR may be used in conjunction with any routine patrol operation or criminal investigation. Reasonable suspicion or probable cause is not required before using an ALPR.

(c) While an ALPR may be used to canvass license plates around any crime scene, particular consideration should be given to using ALPR-equipped cars to canvass areas around homicides, shootings and other major incidents. Partial license plates reported during major crimes should be entered into the ALPR system in an attempt to identify suspect vehicles.

(d) No member of this department or authorized designee shall operate ALPR equipment or access ALPR data without first completing department-approved training. This training is further described in SOP 205.

(e) No ALPR operator may access department, state or federal data unless otherwise authorized to do so.

(f) The employee or authorized designee using our ALPR system must recognize that the data collected from the ALPR device, and the content of referenced hotlists, consists of data that may or may not be accurate, despite ongoing efforts to maximize the currency and accuracy of such data.To the greatest extent possible, vehicle and subject information will be verified using separate law enforcement information sources to confirm the vehicle or subject's identity and justification for contact.Users of ALPR data must to the fullest extent possible visually confirm the actual plate characters generated by the ALPR readers correspond with the digital image of the license plate in question.

463.5 DATA COLLECTION AND RETENTION

Best Practice MODIFIED

The Support Services Captain or their designee is responsible for ensuring systems and processes are in place for the proper collection and retention of ALPR data. Data will be transferred from vehicles to the designated storage in accordance with department procedures, as described in SOP 205.

All ALPR data downloaded to the server should be stored for a minimum of one year (Government Code § 34090.6) and in accordance with the established records retention schedule. Thereafter, ALPR data should be purged unless it has become, or it is reasonable to believe it will become, evidence in a criminal or civil action or is subject to a discovery request

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or other lawful action to produce records. In those circumstances the applicable data should be downloaded from the server onto portable media and booked into evidence.

463.6 ACCOUNTABILITY

State MODIFIED

All data will be closely safeguarded and protected by both procedural and technological means. The San Mateo Police Department will observe the following safeguards regarding access to and use of stored data (Civil Code § 1798.90.51; Civil Code § 1798.90.53):

(a) All ALPR data downloaded to the mobile workstation and in storage shall be accessible only through a login/password-protected system capable of documenting all access of information by name, date and time (Civil Code § 1798.90.52).

(b) Members approved to access ALPR data under these guidelines are permitted to access the data for legitimate law enforcement purposes only, such as when the data relates to a specific criminal investigation or department-related civil or administrative action.

(c) ALPR system audits should be conducted on a regular basis, as described in SOP 205.

For security or data breaches, see the Records Release and Maintenance Policy.

463.7 POLICY

Best Practice MODIFIED

The policy of the San Mateo Police Department is to utilize ALPR technology to capture and store digital license plate data and images while recognizing the established privacy rights of the public.

All data and images gathered by the ALPR are for the official use of this department. Because such data may contain confidential information, it is not open to public review.

463.8 RELEASING ALPR DATA

Best Practice MODIFIED

The ALPR data may be shared only with other law enforcement or prosecutorial agencies for official law enforcement purposes or as otherwise permitted by law, using the following procedures:

(a) Agency members accessing ALPR data are subject to a pre-approval process by SMPD and the database management administration, confirming their authority to access the system for official law enforcement purposes

(b) The agency makes a written request for the ALPR data that includes:

1. The name of the agency.
2. The name of the person requesting.
3. The intended purpose of obtaining the information.

(c) The approved request is retained on file.

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Requests for ALPR data by non-law enforcement or non-prosecutorial agencies will be processed as provided in the Records Maintenance and Release Policy (Civil Code § 1798.90.55).

463.9 TRAINING

State MODIFIED

The ALPR Administrator shall ensure that members receive department-approved training to operate or access the ALPR system (Civil Code § 1798.90.51; Civil Code § 1798.90.53). This training is further described in SOP 205. The department POST Coordinator will maintain all training records in METR.

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